

Motor Vehicles (All India Permit for Tourist Transport Operators) Rules, 1993

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Union of India - Act

Motor Vehicles (All India Permit for Tourist Transport Operators) Rules, 1993

UNION OF INDIA

India

Motor Vehicles (All India Permit for Tourist Transport Operators) Rules, 1993

Rule MOTOR-VEHICLES-ALL-INDIA-PERMIT-FOR-TOURIST-TRANSPORT-OPERATORS-RULES-1993 of 1993

Published on 10 August 1993

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[Note: The original publication document is not available and this content could not be verified.]

Motor Vehicles (All India Permit for Tourist Transport Operators) Rules, 1993

Published vide Notification G.S.R. 541(E), dated 10.8.1993, published in the Gazette of India, Extra., Part.2, Section 3(i), dated 10.8.1993 (w.e.f. 10.8.1993).

197.

In exercise of the powers conferred by sub-section (14) read with sub-section (9) of section 88 of the Motor Vehicles Act, 1988 (

59 of 1988

), the Central Government hereby makes the following rules, namely:

1.

Short title, extent, commencement and exemption

(1)

these rules may be called the Motor Vehicles (All India Permit for Tourist Transport Operators) Rules, 1993.

(2)

these shall extend to the whole of India.

(3)

these shall come into force with effect from the date of publication.

(4)

the conditions prescribed in rules 82 to 85-A of the Central Motor Vehicles Rules, 1989 shall not apply to the permits granted under this scheme.

2.

Definitions

In these rules, unless the context otherwise requires,

(a)

Act means the Motor Vehicles Act, 1988 (59 of 1988),

(b)

Authorisation Certificate means a certificate issued by an appropriate authority to a recognised Tourist Operator authorising him to operate throughout the territory of India or in such continuous States, not being less than three in number including the State in which the permit is issued, on recognised tourist circuits, as are specified in the All India Permit for a tourist vehicle granted to him;

(c)

Appropriate Authority means the authority which is authorised under the Act to grant a permit in respect of a tourist vehicle;

(d)

rule means the rule of the Central Motor Vehicles Rules, 1989;

(e)

section means section of the Act;

(f)

Schedule means a Schedule appended to these rules;

(g)

[Tourist Transport Operator means,

[Substituted by G.S.R. 286(E), dated 22.3.1995 (w.e.f. 22.3.1995).]

(a)

a company or an individual engaged in a business of promotion of tourism by providing tourist transport vehicles on tourist circuits; or

(b)

any travel agency (who possesses his own vehicle or have taken a vehicle on lease for this purpose for a period of at least one year) run by a company or an individual provides all tickets for travel by air, rail, ship, passport, visa and also arrange accommodation, tours, entertainment and other tourism related services; or

(c)

the tour operator (company or individual) who provides for transport, accommodation, sight-seeing, entertainment and other tourist related services for tourist, and who possesses his own vehicle or has taken a vehicle on lease for this purpose for period of at least one year and is recognised by the Department of Tourism of the Government of India;]

(h)

[Tourist Circuit means all places of tourist interest situated in a State for which package tours are prepared and sold by the recognised tourist transport operator.

[Inserted, ibid (w.e.f. 22.3.1995).]

Explanation. For the purpose of removal of doubts, it is clarified that the permit covering such tourist circuits shall be valid throughout the State.]

3.

. Authorisation Certificate shall be issued only to a Tourist Transport Operator recognised by the Department of Tourism

of the Central Government.

4.

Form, contents and duration, etc., of the Authorisation Certificate

(1)

Every application for the issue of an Authorisation Certificate shall be made to the concerned State Transport Authority, in the Form as set forth in the First Schedule.

(2)

Every Authorisation Certificate shall be in the Form as set forth in the Second Schedule.

(3)

the period of validity of an Authorisation Certificate shall not exceed one year at a time.

(4)

the Authorisation Certificate may be renewed on an application made not less than fifteen days before the date of its expiry.

5.

Procedure of applying for and issue of Authorisation Certificate

(1)

An application for an Authorisation Certificate may be made on any working day to the State Transport Authority concerned.

(2)

A State Transport Authority shall not ordinarily refuse to issue an Authorisation Certificate applied for under the se rules.

(3)

Transport Authority may reject the application made under sub-rule (1) for good and sufficient reasons to be recorded in writing, or where the Authority is of the opinion that this would have the effect of increasing the number of Authorisation Certificates limited in terms of section 74(3):

Provided that the Authorisation Certificate applied for shall be issued or refused within a period of thirty days from the date of receipt of application by the State Transport Authority.

6.

Transfer of permit

(1)

Save as otherwise provided in sub-rule (2), an Authorisation Certificate shall not be transferable from one person to another except with the permission of the State Transport Authority which issued the Authorisation Certificate and shall not, without such permission, confer on any person to whom a vehicle covered by the Authorisation Certificate is transferred, any right to use that vehicle in the manner authorised by the Authorisation Certificate.

(2)

Where the holder of an Authorisation Certificate dies, the person succeeding to the possession of the vehicle covered by the Authorisation Certificate may, for a period of three months, use the Authorisation Certificate from the date of death of the holder and on his own intention to use the Authorisation Certificate:

Provided further that no Authorisation Certificate shall be so used, except after its renewal, after the date on which it would have ceased to be effective in the hands of the deceased holder.

(3)

the State Transport Authority may, on an application made to it within three months of the death of the holder of an Authorisation Certificate, transfer the said certificate to the person succeeding to the possession of the vehicle covered by the Authorisation Certificate:

Provided that the State Transport Authority may entertain an application made after the expiry of the said period of three months if it is satisfied that the applicant was prevented for good and sufficient cause from making an application within the specified time.

7.

Replacement of vehicle

.The holder of an Authorisation Certificate may, with the permission of the State Transport Authority by which the Authorisation Certificate was issued, replace any vehicle covered by the Authorisation Certificate by any other vehicle of the same nature.

Explanation. The vehicle of same nature would mean having the same seating capacity for which permit has been granted and composite fee paid and such a replacement vehicle could be of any other make or model.

8.

Appeals

(1)

Any person aggrieved by

(a)

the refusal of the State Transport Authority to issue an Authorisation Certificate or by any condition attached to, an Authorisation Certificate issued to him; or

(b)

the order of revocation or suspension of the Authorisation Certificate or by any variation of the conditions thereof; or

(c)

the order of refusal to transfer the Authorisation Certificate under rule 6 of these rules or section 82; or

(d)

the order of refusal to renew an Authorisation Certificate; or

(e)

any other order which may be made,

may within a period of thirty days from the date on which the said order is communicated to the applicant, appeal to the State Transport Appellate Tribunal constituted under sub-section (2) of section 89 of the Motor Vehicles Act, 1988, who shall after giving such person and the State Transport Authority an opportunity of being heard, give a decision thereon, which shall be final.

9.

Authorisation fee

The fee for the issue of an Authorisation Certificate shall be Rs . 500 per annum and every application for the issue or renewal of the same shall be accompanied by a bank draft for the said amount in favour of the appropriate authority.

10.

Seating capacity

An All India Permit for Tourist Transport Operators shall be issued only in respect of vehicles with a seating capacity of not more than [39]

[Substituted by G.S.R. 286(E), dated 22.3.1995 (w.e.f. 22.3.1995).]

seats, excluding the driver and the conductor. Besides, provision of rule 128 of the Central Motor Vehicles Rules, 1989, except for sub-rule (11) of the said rules, shall also apply to the tourist vehicles.

11.

Age of the tourist coaches

An All India Permit for Tourist Transport Operators shall be deemed to be invalid from the date on which the vehicle covered by the said permit completes nine years, in the case of a motor cab and eight years in the case of a vehicle other than a motor cab.

Explanation .For the purpose of this rule, the period of nine or eight years shall be computed from the date of initial registration of the tourist vehicle concerned.

12.

[

[Substituted by G.S.R. 444(E), dated 26.6.2007 (w.e.f. 26.6.2007).]

Every motor vehicle or motor cab under the Authorisation Certificate issued under these rules shall exhibit the words All India Tourist Permit on the back of the motor vehicle in contrasting colours, so as to be clearly visible.]

substituted by G.S.R. 444(E), dated 26th June, 2007, for 'rule 12' (w.e.f. 26-6-2007). Rule

12, before substitution, stood as under:

12. Distinguishing Particulars to be exhibited on Motor Vehicle.-A motor vehicle or motor cab covered under the Authorisation Certificate issued under these rules shall be painted in white colour with a blue ribbon of 10 centimetres width at the centre of the exterior of the body on both sides of the vehicle, and the word "Tourist" shall be painted inside a circle of 60 centimetres diameter. The permit holder shall also display on the front top of the tourist vehicle, other than a motor cab a board in yellow colour with letters in black colour with the inscription "Approved Tourist Transport

Operator No...."

in English and Hindi, and also if the permit holder so prefers, in the regional language of the Home State, with the logo Peacock', as specified in Annexure No. 1."

13.

List of Tourists

. A tourist vehicle, other than a motor cab plying under an All India Permit for a Tourist Transport Operator shall at all times carry a list of tourist passengers in respect of each trip, and the list shall be produced on demand by the officers authorised to demand production of documents by or under the Act or the rule made the reunder .

14.

Quarterly return to be filed by an All India Tourist Permit Holders

.An All India Tourist Permit Holder shall file a quarterly return, in respect of the motor vehicle covered by the se rules, in the Form set forth in the Third Schedule to the appropriate authority of the State by which the All India Permit is granted and the said authority, in turn, shall forward copies thereof to the appropriate authorities of other States concerned.

15.

Certificate of Recognition

(1)

the eligibility conditions for a Certificate of Recognition shall be as set forth in the Fourth Schedule.

(2)

Every application for a Certificate of Recognition by the Department of Tourism, Government of India, shall be submitted in the Form prescribed in the Fifth Schedule to the Director General of Tourism, Department of Tourism, Government of India, New Delhi - 110 001.

(3)

the Certificate of Recognition shall be granted in the Form prescribed in the Sixth Schedule.

16.

[Conformity to mass emission standards

[Inserted by G.S.R. 58(E), dated 30.1.2009 (w.e.f. 30.1.2009).]

.The Tourist Transport Operator shall not engage or use any vehicle for the purpose of journey, the origin and destination of which falls within the National Capital Region, unless such vehicle conforms to the mass emission standards (Bharat Stage-III) specified in sub-rule (14) of rule 115 of the Central Motor Vehicles Rules, 1989.]

THE FIRST SCHEDULE

[See rule 4(1)]

FORM OF APPLICATION FOR ISSUE OF AN AUTHORISATION CERTIFICATE

To

The State Transport Authority

.....

.....

I/We, the undersigned, hereby apply for the issue of an Authorisation Certificate valid throughout the territory of India/ in the State of

(Here, write the names of the States applicable)

1. Name of the applicant(s) in full (starting with surname, if any) or company

.....

2. Name of father or husband

(in the case of an individual)

3. Complete address

4. Registration mark of the motor vehicle

5. Engine number of the motor vehicle

6. Chassis number of the motor vehicle

7. Original permit number of the motor vehicle

8. Permit issuing authority of the motor vehicle

9. Make of the motor vehicle

10. Registered laden weight of the motor vehicle
11. Unregistered laden weight of the motor vehicle
12. Particulars of the Certificate of Recognition issued by Department of Tourism, Government of India.....

(Copy to be attached)

13. Year of manufacture of the motor vehicle
14. Period for which the Authorisation Certificate is applied for
- From..... To.....

15. I/We enclose Bank Drafts as described hereunder towards payment of the authorisation fee:

Name of the State

Amount paid

Particulars of Bank Draft and Date

Date of Payment

(1)

(2)

(3)

(4)

(1)

(2)

(3)

(4)

(5)

Signature or thumb-impression of applicant(s) or of the authorized signatory with official rubber stamp

Date

* Strike out whichever is not applicable.

THE SECOND SCHEDULE

[See rule 4(2)]

AUTHORISATION CERTIFICATE

This Authorisation Certificate is valid throughout the States of

(On the recognised tour circuits given below)

1. Name in full of the individual or company
- (Starting with surname, if any).
2. Complete address
3. Registration mark of the motor vehicle
4. Engine number of the motor vehicle
5. Chassis number of the motor vehicle
6. Permit number of the motor vehicle
7. Name of the permit issuing authority
8. Make of the motor vehicle
9. Registered laden weight of the motor vehicle
10. Unladen weight of the motor vehicle
11. Year of manufacture of the motor vehicle
12. Period of validity of the Authorisation Certificate From To

(Seal of the Appropriate Authority)

(Signature of the Appropriate Authority)

(on the Reverse)

Certificate of payment of composite fee)

Sl. No

Name of the State

Amount paid

Particulars of Bank Draft and Date

Date of payment

Period of, for which paid

(1)

(2)

(3)

(4)

(5)

(6)

(1)

(2)

(3)

(4)

(5)

Place Signature and seal of the

Date Appropriate Authority

THE THIRD SCHEDULE

[See rule 14]

QUARTERLY RETURN

1. Name and complete address of the permit holder

2. Registration mark of the motor vehicle

3. Registration Number of All India Permit for Tourist

Transport Operator as given by Department of Tourism

(Government of India)

Summary of trips made during the quarter

Month

Total distance covered in the State of*

Total distance of operation

Remarks

(1)

(2)

(3)

(4)

(a)

(b)

(c)

Signature of the All India

Date Permit Holder

*Mention the names of the States applicable.

Note: In the remarks column, state reasons for low or high running in any particular State or States and any other factors which caused low or high operation.

[THE FOURTH SCHEDULE

[See rule 15(1)]

A. ELIGIBILITY CONDITION FOR RECOGNITION AS APPROVED TOURIST TRANSPORT OPERATOR

1. All applications for recognition shall be addressed to the Director General of Tourism, Transport Bhawan, No. 1, Parliament Street, New Delhi-110001.

2. (i) The applications for grant of recognition shall be in the prescribed form.

(ii)

The applicant has been in the tourist transport hire business for a minimum period of 2 years at the time of application.

(iii)

The Tourist Transport Operator has operated in the above 2 years period a minimum number of 3 tourist permits issued by the concerned State Transport Authority/ Road Transport Authority for tourist vehicles. Out of these three tourist

transport vehicles at least one must be a car.

(iv)

The applicant has adequate knowledge of handling the tourist transport vehicles for transferring tourist from the Airport, Railway Stations, etc. and for sight-seeing of tourist both foreign and domestic.

(v)

The drivers of the tourist vehicles have proper uniform and adequate knowledge of taking the tourist for sight-seeing.

(vi)

The applicant has proper parking space for the vehicles.

(vii)

The Tourist Transport Operator is registered with the appropriate authority for carrying on the business of operating tourist transport vehicles.

3.

(a)

The two years period of operating the Tourist Transport business may be relaxable to 1 year in the case of those applicants who have operated 5 tourist vehicles with the proper State Transport Authority/Road Transport Authority permits for 1 year. These 5 tourist vehicles could be in any combination of cars/Air-conditioned Coaches/Mini Coaches/Boats provided there are minimum of at least 2 cars in the fleet of tourist vehicles.

(b)

For Ex-Defence personnel the condition of being in the business of tourist transport vehicles for two years and having 3 vehicles is relaxable provided the candidate is sponsored by the Director General of Resettlement, Ministry of Defence, New Delhi. In the case of such personnel they can operate the tourist transport business with 1 tourist vehicle only. However, the Ex-Defence personnel who apply under this scheme must themselves operate the tourists transport business and should not be hire men of other Financiers.

(c)

The condition of being in operation for 2 years period for tourist transport operator's approval may also be relaxable in the case of those applicants who have located their business at the cities mentioned below:-;

(i)

Amritsar (Punjab);

(ii)

Bodhgar (Bihar);

(iii)

Bhopal (Madhya Pradesh);

(iv)

Bhubaneswar (Orissa);

(v)

Chandigarh;

(vi)

Goa;

(vii)

Hyderabad (Andhra Pradesh);

(viii)

Haridwar (Uttar Pradesh);

(ix)

Pathankot (Punjab);

(x)

Port Blair (The Andaman and Nicobar Islands);

(xi)

Pathankot (Punjab);

(xii)

Srinagar (Jammu and Kashmir);

(xiii)

Tiruchirapalli (Tamil Nadu);

(xiv)

Udaipur (Rajasthan);

(xv)

Visakhapatnam (Andhra Pradesh).

4. The Tourist Transport Operator will be required to pay a non-refundable one time fee of Rs. 500 while applying for the recognition. The fee will be made payable to the Pay and Accounts Officer, Department of Tourism in the form of a Bank Draft.

5. The applicant should be income-tax assessee and should submit copy of acknowledgement certificate as proof having filed income-tax return for current assessment year.

6. The decision of the Department of Tourism, Government of India, in the matter of recognition shall be final. The Government of India may, in their discretion, refuse to recognise or withdraw /withhold at any time recognition already granted without assigning any reason.

7. Recognition once granted shall continue unless revoked and subject to their continuance in this business and their submitting the requisite return of income-tax and other particulars.

8. Tourist Transport Operator granted recognition shall be entitled to such incentives and concessions as may be granted by Government from time to time and shall abide by the terms and conditions of recognition as prescribed from time to time.

B. ELIGIBILITY CONDITIONS FOR RECOGNITION AS APPROVED TRAVEL AGENCY

1. All applications for recognition shall be addressed to the Director-General of Tourism, Transport Bhawan, No. 1. Parliament Street, New Delhi-110001.

2. The following conditions must be fulfilled by the Travel Agency for grant of recognition by Department of Tourism:

(i)

The application for grant of recognition shall be in the prescribed form.

(ii) The Travel Agency has a minimum paid-up capital of Rs. 2.00 lakhs duly supported by the audited balance sheet/Chartered Accountant's certificate.

(iii)

The Travel Agency should be approved by International Air Transport Association (IATA) or General Sales Agent (GSA) of an International Air Transport Association member Airlines.

(iv)

The Travel Agency has an office under the charge of a full time member of their staff, who is adequately trained/experienced in matters regarding ticketing, itineraries, transport, accommodation facilities, currency, customs regulations and other travel and tourism related services.

(v)

The Travel Agency has been in operation for a period of one year before the date of application.

(vi)

The Travel Agency is an income-tax assessee and has filed income-tax return for the current assessment year.

3. Recognition as Travel Agency once granted shall continue unless withdrawn and subject to their continued membership of International Air Transport Association or continuance as General Sales Agent of an International Air Transport Association member Airlines, as the case may be, and their submitting the requisite annual return of income-tax and other particulars.

4. The Travel Agency will be required to pay a non-refundable one time fee of Rs. 1,000 while applying for the recognition. The fee will be payable to the Pay and Accounts Officer, Department of Tourism, in the form of a Bank Draft. Fee for recognition of each Branch Office will be Rs. 500.

5. Recognition will be granted to the Headquarters Office of the Travel Agency. Branch Offices will be approved alongwith the Headquarters Office or subsequently, provided the particulars of Branch Offices are submitted to Department of Tourism and accepted by it.

6. The decision of the Department of Tourism, Government of India, in the matter of recognition shall be final. The Government of India may, in their discretion, refuse to recognise any time or withdraw/ withhold at any time recognition already granted without assigning any reason.

7. Travel Agency printed recognition shall be entitled to such incentives and concessions as may be granted by the

Government of India from time to time and shall abide by the terms and conditions of recognition as prescribed from time to time.

C. ELIGIBILITY CONDITIONS FOR RECOGNITION AS APPROVED TOUR OPERATOR

1. All applications for recognition shall be addressed to the Director General of Tourism, Transport Bhawan, No. 1, Parliament Street, New Delhi-110001.

2.

(i)

The application for grant of recognition shall be in the prescribed form.

(ii)

The Tour Operator should have a minimum paid-up capital of Rs. 1.00 lakh fully supported by the latest audited balance sheet/ Chartered Accountant's Certificate.

(iii)

The turn-over in terms of foreign exchange or Indian rupees by the firm from tour operation only should be a minimum of Rs. 5.00 lakhs duly supported by Chartered Accountant's certificate.

(iv)

The Tour Operator has an office under the charge of a full time member of their staff, who is adequately accommodation, currency, customs regulations and general information regarding travel and tourism related services.

(v)

The Tour Operator should have been in operation for a minimum period of one year before the date of application.

(vi)

The Tour Operator will have to be income-tax assessee and should have filed income-tax return for the current assessment year.

3. The recognition as approved Tour Operator once granted shall continue unless withdrawn subject to their continuance in this business and their submitting the requisite annual return of income-tax and other particulars.

4. The Tour Operator will be required to pay a non-refundable one time fee of Rs. 1,000 while applying for the recognition. The fee will be made payable to the Pay and Accounts Officer, Department of Tourism, in the form of a Bank Draft. The fee for recognition of each Branch Office will be Rs. 500.

5. Recognition will be granted to the Headquarters Office of Tour Operators. Branch Offices will be approved alongwith the Headquarters Office or subsequently, provided the particulars of the Branch Offices submitted to Department of Tourism and accepted by it.

6. [The decision of the Department of Tourism, Government of India, in the matter of recognition shall be final. The Government of India may, in its discretion, refuse to recognise any Tour Operator or withdraw or withhold at any time recognition granted to any Tour Operator, but before applying such discretion, it shall be lawful for the Government of India to issue show cause notice to the aggrieved Tour Operator and to consider his reply on merit and to communicate him the decision taken on such consideration.]

[Substituted by Notification No. G.S.R. 83 (E), dated 23.2.1998 (w.e.f. 10.8.1993)]

7. Tour Operator granted recognition shall be entitled to such incentives and concessions as may be granted by Government from time to time and shall abide by the terms and conditions of recognition as prescribed from time to time by the Department of Tourism, Government of India.

THE FIFTH SCHEDULE

[See rule 15(2)]

A. APPLICATION FORM FOR RECOGNITION AS APPROVED TOURIST TRANSPORT OPERATOR

1. Name of the firm with address, telephone, telex and fax number.

2. Nature of the firm and date of registration/ commencement of business with documentary proof.

3. Whether the office is located in residential/ commercial/ industrial area.

4. Name, experience, qualifications of the Proprietor/ Managing Director.

5. Total number of staff including Drivers.

6. Name of the Travel Agents/Tour Operators/Hotels/Airlines with whom most business is transacted.

7. Please attach a copy of the audited balance sheet and profit and loss statement duly with copy of income-tax return application along for current alongwith of acknowledgment certificate, in respect assessment year.

8. Please indicate the loans and mortgages as on the date of application.
9. Number of vehicles, viz., Air-conditioned coaches, non-Air conditioned coaches, Mini coaches, Cars and Boats operated as tourist vehicles with their make, model and registration.
10. Attested copies of valid permits issued by Road Transport Authority/State Transport Authority for Tourist vehicles and Registered Certificate Books of Tourist vehicles should be furnished.
11. Number and date of Bank Demand Draft for Rs. 500 in favour of Pay and Accounts Officer, Department of Tourism, New Delhi.

Signature

Designation

Rubber stamp of company

B. APPLICATION FORM FOR RECOGNITION AS APPROVED TRAVEL AGENCY

1. Name and address of Head Office and Branch Office.
2. Nature of the firm and the year when the firm was registered or commenced business with documentary proof. in other business
3. Name of Directors/ Partners, etc. The details of their interests, if any, may also be indicated.
4. Give particulars of staff employed, their qualifications, experience, salary and length of their interests, if any, in other business/ service with the firm.
5. Name of Bankers (Please attach a reference from your bankers).
6. Name of Auditors. A balance-sheet and profit and loss statement pertaining to the travel business, as prescribed under Company Law, must be submitted by each applicant. These audited statements should be in respect of your establishment for the last completed financial year or for the calendar year immediately preceding the date of submission of your application. Also furnish details of your turnover in the following statement:

Name and particulars of the Travel Agency concerned.

(a)

Paid-up capital

(b)

Loans

(i)

Secured

(ii)

Unsecured

(c)

Reserves

(d)

Current liabilities and provision

(e)

Fixed assets (excluding intangible assets)

(f)

Investment

(g)

Current assets

(h)

Intangible assets

Total

Notes- (i) Reserves would include balance of profit and loss account and would exclude taxation reserve.

(ii)

Current liabilities and provisions would include taxation reserve.

(iii)

Current assets would include sundry debts, loans and advances, cash and bank balance.

(iv)

Intangible assets would include goodwill, preliminary expenses, tenancy and business rights, deferred revenue

expenditure, accumulated loss, etc.

7. Copy of acknowledgment certificate in respect of income-tax return for the current assessment year should be enclosed.

8. Whether any other activities are undertaken by the firm besides travel related activities.

9. Please indicate the air/shipping/railway ticketing agencies held by the firm.

10. Please indicate membership of International Travel Organisations, if any.

11. Letter of approval of International Air Transport Association, certificate of endorsement for current year should be enclosed. General Sales Agents of any International Air Transport Association, Airlines should enclose documentary proof in this regard.

12. Please enclose Demand Draft of Rs. 1,000 for Head Office and Rs. 500 for each Branch Office as fee for recognition and mention the Demand Draft number, date and amount in this column.

Signature of the Proprietor/ Partner/

Managing Director

Rubber stamp

C. APPLICATION FORM FOR RECOGNITION AS APPROVED TOUR OPERATOR

1. Name and address of Head Office and Branch Office.

2. Nature of the firm and the year when the firm was registered or commenced business with documentary proof.

3. Name of Directors/Partners, etc. The details of their interests, if any, in other business also be indicated.

4. Give particulars of staff employed, their qualifications, experience, salary and length of service with the firm.

5. Name of Bankers (Please attach a reference from your bankers.)

6. Name of Auditors. A balance-sheet and profit and loss statement pertaining to the tour operation business, as prescribed under Company Law, must be submitted by each applicant. These audited statements should be in respect of your establishment for the last completed financial year or for the calendar year immediately preceding the date of submission of your application. Also furnish details of your turnover in the following statement:

Name and particulars of the operator concerned.

(a)

Paid-up capital

(b)

Loans

(i)

Secured

(ii)

Unsecured

(c)

Reserves

(d)

Current liabilities and provisions

(e)

Fixed assets (excluding intangible assets)

(f)

Investment

(g)

Current assets

(h)

Intangible assets

Total

Notes..-(i) Reserves would include balance of profit and loss account and would exclude taxation reserve.

(ii)

Current liabilities and provisions would include taxation reserve.

(iii)

Current assets would include sundry debts, loans and advances, cash and bank balance.

(iv)

Intangible assets would include goodwill, preliminary expenses, balance and business rights, deferred revenue expenditure, accumulated loss, etc.

7. Copy of acknowledgment certificate in respect of income-tax return for the current assessment year should be enclosed.

8. Whether any other activities are undertaken by the firm besides tour operation.

9. Member of International Travel Operations.

10.

(a)

Give details of volume of tourist traffic handled upto the date of application showing foreign and internal tourist traffic separately. Please submit a certificate from Chartered Accountant. This certificate should show the receipts from tour operation only during the financial year or the calendar year immediately preceding the date of submission of your application.

(b)

Clientele: Special tourist groups handled, if any, their size, frequency, etc.

(c)

Steps taken to promote domestic tourist traffic and detailed of groups handled, if any.

(d)

Special programmes, if any, arranged for foreign tourists.

11. Number of Conferences handled, if any, and the total number of passengers for such Conferences with details of location, etc.

12. Number of incentive tours handled.

13. Please enclose a Demand Draft of Rs. 1,000 for Head Office and Rs. 500 for each Branch Office as fee for recognition and mention the Demand Draft number, date and amount in this column.

Signature of the Proprietor/ Partner/

Managing Director

Rubber stamp of the Firm

THE SIXTH SCHEDULE

[See rule 15(3)]

Certificate of Recognition

Date

No

Certified that

(Name and address of the Approved Tourist Transport Operator)is recognised by the Department of Tourism, Government of India, New Delhi as an approved Tourist Transport Operator.

Place

Director General (Tourism)]

Certified that

(Name and Address

Related AI tags, queries and research notes

Translation